Non-application – governments, central banks and international organizations

7. This Instrument does not apply to any of the following:

(a) the Government of Canada, the government of a jurisdiction of Canada or the government of a foreign jurisdiction;

(b) the Bank of Canada or a central bank of a foreign jurisdiction;

(c) the Bank for International Settlements;

(d) the International Monetary Fund.

Exemptions from certain requirements in this Instrument when dealing with or advising an eligible derivatives party

8. **(1)** Subject to subsection (3), a derivatives firm is exempt from this Instrument, in relation to a transaction with a derivatives party if the derivatives party

(a) is an eligible derivatives party, and

(b) is not an individual or an eligible commercial hedger.

(2) Subject to subsection (3), a derivatives firm is exempt from this Instrument, in relation to a transaction with a derivatives party,

(a) if the derivatives party

(i) is an eligible derivatives party,

(ii) is an individual or an eligible commercial hedger, and

(iii) has provided the derivatives firm with a written statement that it "waives protections provided in National Instrument 93-101" and specifies which protections that statement applies to, and

(b) if, in the case of a derivatives party that is an individual and is an eligible commercial hedger, the derivatives firm has identified and documented the nature of the derivatives party's business and the related commercial risks that the derivatives party is hedging.

(3) The exemptions in subsections (1) and (2) do not apply in respect of the following:

(a) Division 1 [*General obligations towards all derivatives parties*] of Part 3 [*Dealing with or advising derivatives parties*];

(b) sections 24 [Application and *Interaction with other Instruments*] and 25 [*Segregating derivatives party assets*];

(c) subsection 28(1) [*Content and delivery of transaction information*];

(d) Part 5 [*Compliance and recordkeeping*].

Part 6 [Exemptions] of this Instrument provides exemptions from the requirements of this Instrument to persons or companies, subject to certain terms and conditions:

- *Foreign liquidity providers – transactions with derivatives dealers (s. 37)*
- *Certain derivatives end-users (s. 38)*
- *Foreign derivatives dealers (s. 39)*
- *Investment dealers (s. 41)*
- *Canadian financial institutions (s. 42)*
- *Derivatives transacted on a derivatives trading facility where the identity of the derivatives party is unknown (s. 43)*
- *Certain notional amounts of certain commodity derivatives and other derivatives activity (s.44)*
- *Advising generally (s. 45)*
- *Foreign derivatives advisers (s. 46)*